

SENATE No. 2665**The Commonwealth of Massachusetts**

PRESENTED BY:

Jason M. Lewis

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to notify employees of an I-9 audit.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>Jason M. Lewis</i>	<i>Fifth Middlesex</i>	
<i>James B. Eldridge</i>	<i>Middlesex and Worcester</i>	<i>8/18/2025</i>
<i>Joanne M. Comerford</i>	<i>Hampshire, Franklin and Worcester</i>	<i>9/2/2025</i>
<i>Rebecca L. Rausch</i>	<i>Norfolk, Worcester and Middlesex</i>	<i>9/4/2025</i>
<i>Patricia D. Jehlen</i>	<i>Second Middlesex</i>	<i>10/6/2025</i>
<i>Adam Gómez</i>	<i>Hampden</i>	<i>10/20/2025</i>
<i>Edward R. Philips</i>	<i>8th Norfolk</i>	<i>10/20/2025</i>
<i>James C. Arena-DeRosa</i>	<i>8th Middlesex</i>	<i>11/19/2025</i>
<i>Tram T. Nguyen</i>	<i>18th Essex</i>	<i>11/19/2025</i>
<i>Lydia Edwards</i>	<i>Third Suffolk</i>	<i>11/25/2025</i>
<i>Sal N. DiDomenico</i>	<i>Middlesex and Suffolk</i>	<i>11/25/2025</i>
<i>Amy Mah Sangiolo</i>	<i>11th Middlesex</i>	<i>11/25/2025</i>
<i>Steven Owens</i>	<i>29th Middlesex</i>	<i>11/25/2025</i>
<i>Tara T. Hong</i>	<i>18th Middlesex</i>	<i>11/25/2025</i>
<i>Adrian C. Madaro</i>	<i>1st Suffolk</i>	<i>12/1/2025</i>
<i>Joshua Tarsky</i>	<i>13th Norfolk</i>	<i>12/1/2025</i>
<i>Erika Uyterhoeven</i>	<i>27th Middlesex</i>	<i>12/1/2025</i>
<i>Manny Cruz</i>	<i>7th Essex</i>	<i>12/1/2025</i>

John Francis Moran

9th Suffolk

12/1/2025

SENATE No. 2665

By Mr. Lewis, a petition (accompanied by bill, Senate, No. 2665) (subject to Joint Rule 12) of Jason M. Lewis, James B. Eldridge, Joanne M. Comerford, Rebecca L. Rausch and other members of the General Court for legislation to require employers to notify current employees of an I-9 employment eligibility verification form, or other employment records, within 72 hours of receiving the notice from a government agency. Labor and Workforce Development.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to notify employees of an I-9 audit.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Chapter 149 of the General Laws is hereby amended by striking out section 19C and
2 inserting in place thereof the following section:-

3 Section 19C. It shall be unlawful for any employer knowingly to employ any alien in the
4 commonwealth, who is a student or visitor or, who has not been admitted to the United States for
5 permanent residence, except those whose status includes work authorization, or unless the
6 employment of such alien is authorized by the attorney general of the United States. An
7 employer shall not be deemed to have violated this section if he has made a bona fide inquiry
8 whether a person hereafter employed or referred by him is a citizen or an alien, and if an alien,
9 whether he is lawfully admitted to the United States for permanent residence, or admitted with a
10 status that includes work authorization, or is authorized by the attorney general of the United
11 States to accept employment.

12 The commissioner shall promulgate regulations specifying the procedure to be followed
13 by each employer to insure compliance with the provisions of this section.

14 Except as required by federal law, an employer is required to notify current employees by
15 posting notice of an inspection of I-9 employment eligibility verification forms or other
16 employment records conducted by a government agency within 72 hours of receiving the federal
17 notice of inspection.

18 Any person who violates any provision of this section shall be punished by a fine of not
19 more than five hundred nor less than two hundred dollars.